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PRESS RELEASES

Two Deaths at Miami Correctional Facility in Less Than Two Months Demand Urgent Answers

The ACLU of Indiana raises alarms about medical care, oversight and treatment of people held in ICE custody at the Indiana facility

April 9, 2026 9:00 am

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BUNKER HILL, Ind. — The ACLU of Indiana is calling for urgent transparency and accountability after two people died in federal immigration custody at Miami Correctional Facility in less than two months.

Lorth Sim, a 59-year-old lawful permanent resident from Cambodia, was found unresponsive in his cell at the facility and pronounced dead on Feb. 18, 2026. The Miami County coroner ruled his cause of death to be atherosclerotic cardiovascular disease, with additional significant conditions of diabetes mellitus. On April 1, Tuan Van Bui, a 55-year-old man from Vietnam who had lived in the United States for

over 25 years, also died at the facility. According to U.S. Immigration and Customs Enforcement (ICE), staff found Mr. Bui unresponsive, and his cause of death remains under investigation.

While official statements may point to the immediate circumstances of death in Mr. Sim's case, they do not answer the critical questions about whether people detained at Miami Correctional Facility are receiving adequate medical monitoring, timely access to care and appropriate treatment for serious and chronic health conditions while in custody. Two deaths in less than two months raise serious concerns about conditions inside the facility, the adequacy of oversight and whether the safety and rights of those held there are being protected. At least 15 people are now known to have died in ICE custody in 2026.

Background on ICE Detention at Miami Correctional Facility

In August 2025, the Indiana Department of Correction (IDOC) entered into a two-year agreement with the U.S. Department of Homeland Security (DHS) to house up to 1,000 people in ICE custody at Miami Correctional Facility, a high-medium security state prison in Miami County. Under the agreement, Indiana receives approximately \$291 to \$294 per detainee per day, nearly four times the per-person daily cost of housing state inmates at the same facility. As of early 2026, the facility held approximately 550 detainees at any given time, and more than 800 people have moved through since October 2025.

Concerns about conditions from individuals at Miami Correctional Facility have been reported since it began

operating as an immigration detention site. A hotline operated by Freedom for Immigrants received nearly 70 calls from individuals inside the facility in December 2025 alone, with callers reporting severe medical neglect, inadequate food and physical abuse by guards. Congressional oversight visits have also raised concerns about delays with ICE's Online Detainee Locator System, medical staffing, use of the facility's infirmary and the scope of care provided by Centurion Health, the facility's medical contractor. These are not isolated concerns – they reflect a broader pattern across the national immigration detention system that we are now seeing in Indiana.

Detainees Are Entitled to Humane Conditions and Adequate Medical Care

Under the Fifth Amendment, people held in civil immigration detention are entitled to the same constitutional protections as people held in pretrial criminal detention. Some courts have held that because immigration detention is civil, not criminal, immigration detainees may be entitled to even greater protections.

At a minimum, that means detainees cannot be denied medical care for serious health needs and cannot be held in conditions that effectively constitute punishment. Under the law, conditions amount to punishment if they are intended to be punitive, are not reasonably related to a nonpunitive goal, or if the condition is “excessive” in relation to that goal.

People in immigration detention are also covered by standards of confinement under the [Immigration and Nationality Act](#), including the [National Detention Standards](#) and [Performance-Based National Detention Standards](#),

which set requirements for safety, medical care, accountability and basic living conditions.

What Comes Next

IDOC and elected officials, including members of Congress, state legislators and the IDOC commissioner, must publicly share more information about these deaths and conditions inside the facility. But transparency alone is not enough, and there must be meaningful oversight and real safeguards to prevent further harm.

The Office of the Immigration Detention Ombudsman should be restored so that people in detention, their families and advocates once again have a place to report abuse, neglect, medical concerns and unsafe conditions. Its closure in 2025 eliminated one of the few internal accountability mechanisms within the federal immigration detention system.

DHS and Congress should also strengthen protections for people in ICE custody, including independent medical evaluations not controlled by for-profit contractors and specialized training for staff on the rights of those in ICE detention. This includes the basic principle that civil immigration detention is not meant to be punitive in nature.

Until those safeguards are restored, people with direct knowledge of conditions at Miami Correctional Facility can still report concerns such as medical neglect, physical mistreatment, inadequate food, denial of legal access and other civil rights violations to the DHS Office of Inspector General:

Online: oig.dhs.gov/hotline

Phone: 1-800-323-8603

Fax: 202-254-4297

U.S. Mail:

DHS Office of Inspector General/MAIL STOP 0305

Attn: Office of Investigations - Hotline

245 Murray Lane SW

Washington, DC 20528-0305

The ACLU of Indiana may also be able to assist people in detention with concerns related to conditions of confinement or access to health care. Because the ACLU of Indiana cannot accept complaints or requests for help from friends, relatives or other third parties, anyone seeking assistance for themselves should write directly to:

ACLU of Indiana

1031 E. Washington St.

Indianapolis, IN 46237

The deaths of Mr. Sim and Mr. Bui must be a turning point. Indiana and federal officials must act now to protect the dignity, safety, health, and rights of every person held in ICE custody.

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